IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana Kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER SECTION 13 B OF THE HINDU MARRIAGE ACT 1955

I.PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika.

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II.PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate, Coimbatore - 641018.

III. RESPONDENT:

- NIL-

IV.The petitioners begs to submit as follows:

1. That the petitioners are Hindus by religion and the marriage between them took place on 25.02.2021 at "LBR.Thirumana Mandapam, Vinayagapuram,

Vilankuruchi Road, Coimbatore", as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam. There is no child born out of the wedlock.

2. The petitioners submit that ever since the date of their marriage, there was no cordial relationship between each other and they tried their level best to solve the misunderstandings between them and in fact all their attempts proved futile. There was no consensus of mind between the petitioners. Further, the petitioners realized that there was no love or affection between them and they were unable to adjust and tolerate with each other in spite of the advices of elders, friends and well-wishers. The petitioners submit that since there were various misunderstandings between them, ever since the date of marriage despite several attempts to live together the 2nd petitioner after losing all her hope got separated from the 1st petitioner on 25.08.2021.

3. The petitioners submit that ever since separation i.e., 25.08.2021, the mediators of both families through several meetings tried for an amicable settlement to resolve their misunderstandings, but all their attempts went in vain. The petitioners submit that there is no chance for reunion between them and there is no possibility of uniting and living together ever again. Hence, they have no other option except to seek for the relief of dissolution of the marriage that took place between them on 25.02.2021, from this Hon'ble Court.

4. The petitioners submit that they can lead their life in future peacefully if this Hon'ble Court grants divorce to them, since all possible efforts for reunion had already been taken place and the same has failed miserably and thus, there is absolutely no possibility of being reunited. Further, the articles including jewels, utensils and other Srithanas presented by parents of the 2ndpetitioner were returned by the 1st petitioner to the 2nd petitioner. So also, the jewels presented by 1st petitioner to 2nd petitioner were also returned by 2nd petitioner to the 1st petitioner. Thus, at present there is no claim against each other. The 2nd petitioner is hereby waiving her right of maintenance for her future.

5. The petitioners submit that there is no collusion between them in filing the present petition. The petitioners further submit that they are living separately for more than 2 ½ years before the date of filling this application.

6. The petitioners submit that they had mutually agreed to dissolve the marriage and the decision for mutual divorce was taken by their own free decision, voluntarily and of their own accord and not by any undue influence, threat, fear or coercion.

7. The petitioners submit that there are no other petitions of any similar nature filed or pending before this Hon'ble Court or any other courts.

8. The cause of action for this petition arose on 25.02.2021, when the marriage between them took place at "LBR. Thirumana Mandapam, Vinayagapuram,Vilankuruchi Road, Coimbatore" on subsequent dates, when misunderstanding arose between them within six months of marriage, on 25.08.2021, when they got separated and on subsequent dates when no fruitful result arrived despite several meetings for an amicable settlements by family and friends of both petitioners and all this cause of action arose at Coimbatore also which is within the jurisdiction of this Hon'ble Court.

9. The petitioners submit that the marriage between them took place at Coimbatore District, Tamil Nadu and both the petitioners are residing at Coimbatore. Hence this Hon'ble Court has got jurisdiction to entertain this petition.

10. A court fee of Rs. /- is paid thereon under schedule II Article 11 [1] (ii) of the Tamil Nadu Court Fees and Suit Valuation Act is paid.

11. Therefore, the petitioners pray that this Hon'ble Court may be pleased pass a decree and judgment by dissolving the marriage that took place between the petitioners on 25.02.2021 at "LBR. Thirumana Mandapam, Vinayagapuram, Vilankuruchi Road, Coimbatore" which is registered under Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam by a decree of mutual consent and pass such other further reliefs as this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

1.

2.

ADVOCATE FOR PETITIONERS **PETITIONERS**

VERIFICATION

We, the petitioners above named do hereby state that the facts submitted above are true and correct to the best of our knowledge and we signed this verification at Coimbatore, on the day of 2024.

1.

2.

PETITIONERS

LIST OF DOCUMENTS:

S.No.	Date	Nature of Documents	Original/ Xerox
1.	25.02.2021	Marriage Invitation	Original
2.	24.02.2021	Marriage Reception Invitation	Original
3.		Aadhar card of petitioner No.1	Xerox
4.		Aadhar card of Power Agent of 1st petitioner	Xerox
5.		Aadhar card of petitioner No.2	Xerox
6.		Marriage Registration Certificate	Xerox
7.		Power of Attorney executed by 1st petitioner in favour of Mrs. R.Mallika (Power Agent of 1st petitioner)	Xerox

ADVOCATE FOR PETITIONERS

Identified by me

PETITIONER NO. 1 **PETITIONER NO. 2**

POWER AGENT OF 1ST PETITIONER

ADVOCATE FOR PETITIONERS

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika

- Petitioner No.1

Mrs.Sowbarnika

- Petitioner No.2

-Vs-

-Nil -

- Respondent

PETITION FILED UNDER SECTION 13 B OF THE HINDU MARRIAGEACT 1955

Pre.on:

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
Advocate
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641018.
Off: 0422-2200337
Mr.R.Balakrishnan, B.A.,B.L.,
Advocate
3-A, India Tower 3rd Floor,
Gopalapuram 2nd Street,
Coimbatore-641018

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/Petitioner No.2

-Vs-

- Nil - - Respondent

AFFIDAVIT

We, Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika. and Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006 do hereby solemnly affirm and state as follows;-

1. We are the Petitioners herein and as well as petitioners in the main petition

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 25.02.2021 at "LBR.Thirumana Mandapam, Vinayagapuram,Vilankuruchi Road, Coimbatore", as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No. HMR/NEGAMAM/46/2021 at SRO, Negamam. There is no child born out of the wedlock.

3. We submit that ever since the date of our marriage, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile. Hence, we have decided to get a decree of divorce through Court of Law by

mutual consent. Hence, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit.

4. We submit that we are also having bright future if we get divorce now. So also, we have a chance of better life in near future. Further, the nature of case requires assistance of legal adviser and thereby, we have engaged our counsel to represent on our behalf before this Hon'ble Court.

5. As such, unless we are permitted to appear and be represented through our counsels Mr. S.Chandrasekaran, M.A., B.L., DLL. and Mr.R.Balakrishnan B.A.B.L. Advocates, Coimbatore, we will be put to irreparable loss and hardship.

Therefore, we pray that this Hon'ble Court may be pleased to permit us to appear before this Hon'ble Court through our counsels Mr.S.Chandrasekaran, M.A.,B.L., DLL., and Mr.R.Balakrishnan B.A.B.L. Advocates, Coimbatore and pass such other further reliefs.

1.

2.

Solemnly affirm and signed
before me at Coimbatore on **PETITIONERS**

ADVOCATE, COIMBATORE.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/ Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/ Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER SECTION 13 OF THE FAMILY COURT ACT

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika.

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II.PETITIONER NO.2/PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate,Coimbatore - 641018.

III. RESPONDENT:

- NIL-

For the reasons stated in the accompanying affidavit, the petitioners pray that this Hon'ble Court may be pleased to permit us to appear before this Hon’ble Court through our Counsels Mr.S.Chandrasekaran, M.A.,B.L.,DLL., and Mr.R.Balakrishnan B.A.B.L. Advocates, Coimbatore and pass such other reliefs, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

1.

2.

PETITIONERS **ADVOCATE FOR PETITIONERS**

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika
- Petitioner No.1/
Petitioner No.1

Mrs.Sowbarnika
- Petitioner No.2/
PetitionerNo.2

-Vs-

- Nil -
- Respondent

PETITION FILED UNDER SECTION 13 OF THE FAMILY COURT ACT

PRE ON:

ADDRESS FOR SERVICE:

S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate,
85/12, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641018.
93631 20899, 0422-2200337
Mr.R.Balakrishnan, B.A.,B.L.,
Advocate,
3-A, India Tower 3rd Floor,
Gopalapuram 2nd Street,
Coimbatore- 641018

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/ Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/ Petitioner No.2

-Vs-

- Nil - - Respondent

AFFIDAVIT

We, Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika. and Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006 do hereby solemnly affirm and state as follows;-

1. We are the Petitioners herein and as well as petitioners in the main petition

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 25.02.2021 at "LBR.Thirumana Mandapam, Vinayagapuram,Vilankuruchi Road, Coimbatore",as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam.There is no child born out of the wedlock.

3. We submit that ever since the date of our marriage, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile.

4. We further submit that we have been living separately ever since 25.08.2021 and thereafter the mediators of both families also made arrangements to solve our misunderstandings and in fact, despite their attempts for mediations, all efforts are failed and thus at present there are no likely chances for reunion. As such, we have decided to get a decree of divorce by mutual consent through Court of Law and thus, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit. Further the articles presented between us during marriage were also got exchanged by us and thus, at present no claim is against each other.

5. We assure that there are no likely chances between us for reunion anymore and also we may not live peacefully if we are together under one roof. As such, it would be better for our future life if we get a divorce by mutual consent before this Hon'ble Court. Besides, there are likely chances to start a fresh independent life for both of us and, if the process in getting divorce is delayed, we may be put to trouble further. We state that if we get separated now from each other, we may have likely chance to get re-married in a short period of time.

6. As such, unless the cooling period of six months is dispensed with by this Hon'ble Court, we will be put to great loss and hardship.

Therefore, we pray that this Hon'ble Court may be pleased to pass an order by dispensing the cooling period of six months and pass such other further relief.

1.

2.

Solemnly affirm and signed
before me at Coimbatore on

PETITIONERS

ADVOCATE, COIMBATORE.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/ Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER SECTION 13 (B) (2) OF THE HINDU MARRIAGE ACT 1955

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika.

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II.PETITIONER NO.2/PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate,Coimbatore - 641018.

III. RESPONDENT:

- NIL-

For the reasons stated in the accompanying affidavit, the petitioners pray that this Hon'ble Court may be pleased to pass an order by dispensing the cooling period of six months and pass such other further reliefs, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

1.

2.

PETITIONERS **ADVOCATE FOR PETITIONERS**

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika
- Petitioner No.1/
Petitioner No.1

Mrs.Sowbarnika
- Petitioner No.2/
Petitioner No.2

-Vs-

-Nil -
- Respondent

PETITION FILED UNDER SECTION 13 (B)(2) OF THE HINDU MARRIAGE ACT 1955

PRE ON:

ADDRESS FOR SERVICE:
Mr.S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate,
85/12, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641018.
93631 20899, 0422-2200337.
Mr.R.Balakrishnan, B.A.,B.L.,
Advocate
3-A, India Tower 3rd Floor,
Gopalapuram 2nd Street,
Coimbatore-641018.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/ Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/ Petitioner No.2

-Vs-

- Nil - - Respondent

AFFIDAVIT

We, Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika. and Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006 do hereby solemnly affirm and state as follows;-

1. We are the Petitioners herein and as well as petitioners in the main petition

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 25.02.2021 at "LBR. Thirumana Mandapam, Vinayagapuram, Vilankuruchi Road, Coimbatore",as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam. There is no child born out of the wedlock.

3. We submit that ever since the date of our marriage, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile.

4. We further submit that we have been living separately ever since 25.08.2021 and thereafter the mediators of both families also made arrangements to solve our misunderstandings and in fact, despite their attempts for mediations, all efforts are failed and thus at present there are no likely chances for reunion. As such, we have decided to get a decree of divorce by mutual consent through Court of Law and thus, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit. Further the articles presented between us during marriage were also got exchanged by us and thus, at present no claim is against each other.

5. We assure that there are no likely chances between us for reunion anymore and also we may not live peacefully if we are together under one roof. As such, it would be better for our future life if we get a divorce by mutual consent before this Hon'ble Court. Besides, absolutely there are likely chances for our new life and if the process is delayed, we may put on trouble further. If we get now separated each other, we may have likely chances for our re-marriage in short period of time. Hence, we intend to file necessary application seeking relief to dispense with cooling period. In fact, the above case is posted for hearing for further hearing and as we now intend to settle, the hearing of above case may be advanced to any earlier date or else we will be put to hardship.

Therefore, we pray that this Hon'ble Court may be pleased to pass an order by advancing the hearing of the above case from to any earlier date and pass such other further relief.

1.

2.

Solemnly affirmed and signed **PETITIONERS**
before me at Coimbatore on

ADVOCATE, COIMBATORE

IN THE COURT OF THE HON'BLE

FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/ Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/ Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER RULE 28 (2) OF CIVIL RULES OF PRACTICE

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika.

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II.PETITIONER NO.2/PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate, Coimbatore - 641018.

III. RESPONDENT:

- NIL-

For the reasons stated in the accompanying affidavit, the petitioners prays that this Hon'ble Court may be pleased to pass an order by advancing the hearing of the above case from to any earlier date and pass such other further relief, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

1.

2.

PETITIONERS **ADVOCATE FOR PETITIONERS**

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika
- Petitioner No.1/
Petitioner No.1

Mrs.Sowbarnika
- Petitioner No.2/
Petitioner No.2

-Vs-

- Nil -
- Respondent

PETITION FILED UNDER RULE 28(2) OF CIVIL RULES OF PRACTICE

PRE ON:

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L.,DLL.,
Advocate,
85/12, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641018.
93631 20899, 0422-2200337.
Mr.R.Balakrishnan, B.A.,B.L.,
Advocate
3-A, India Tower 3rd Floor,
Gopalapuram 2nd Street,
Coimbatore - 641018.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar Rep. by his Power Agent Mrs.R.Mallika	-	Petitioner No.1/Petitioner No.1
Mrs.Sowbarnika	-	Petitioner No.2/Petitioner No.2

-Vs-

- Nil -	-	Respondent

AFFIDAVIT

I, Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika do hereby solemnly affirm and state as follows;-

1. I am the deponent herein and Power Agent of 1st petitioner

2. I submit that the petitioners have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 25.02.2021 at "LBR.Thirumana Mandapam, Vinayagapuram,Vilankuruchi Road, Coimbatore",as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam There is no child born out of the wedlock.

3. I submit that ever since the date of their marriage, there was no cordial relationship between them. We being family members tried our level best to solve their misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised them for an amicable Settlement to live peacefully but all their attempts are futile. Hence, they have decided to get a decree of divorce through Court of Law by mutual consent. Hence, the main petition is filed. I crave leave to refer the main petition as part and parcel of this affidavit.

4. I submit that they are also having bright future if they get divorce now. So also, they have a chance of better life in near future. Hence, they have filed the above main petition seeking divorce by mutual consent. At this juncture, since the 1st petitioner being my son is working at Dubai, he has executed a Power of Attorney favouring me to proceed with the above case on his behalf. I also state that he may not get leave often to come to India to attend this case and as such, the main petition was filed by me representing him as his Power Agent.

5. I submit that the 1st petitioner is always ready and willing to appear before this Hon'ble Court through video conference or through his mobile number 9095004321 whenever he is ordered to do so. His mail id is shankar.snk777@gmail.com. As such, he may be permitted to appear before this Hon'ble Court through video conference or else he will be put to hardship.

Therefore, it is prayed that this Hon'ble Court may be pleased to permit the 1st petitioner to appear before this Hon'ble Court through video conference or through his mobile number 9095004321 or through his mail id shankar.snk777@gmail.com and pass such other further reliefs.

Solemnly affirm and signed
before me at Coimbatore on **PETITIONER NO.1**

ADVOCATE, COIMBATORE

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER SECTION 151 OF CPC

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II.PETITIONER NO.2/PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate, Coimbatore - 641018.

III. RESPONDENT:

- NIL-

For the reasons stated in the accompanying affidavit, the petitioners prays that this Hon'ble Court may be pleased to permit the 1st petitioner to appear before this Hon’ble Court through video conference or through his mobile number 9095004321 or through his mail id shankar.snk777@gmail.com and pass such other further relief, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

ADVOCATE FOR 1st PETITIONER

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika
- Petitioner No.1/
Petitioner No.1

Mrs.Sowbarnika
- Petitioner No.2/
Petitioner No.2

-Vs-

- Nil -
- Respondent

PETITION FILED UNDER SECTION 151 OF CPC

PRE ON:

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/Petitioner No.2

-Vs-

- Nil - - Respondent

AFFIDAVIT

I, Mrs.Mallika W/o.Rajendran, aged years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 do hereby solemnly affirm and state as follows;-

1. I am the deponent herein and mother of 1st petitioner.

2. I submit that the petitioners have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 25.02.2021 at "LBR.Thirumana Mandapam, Vinayagapuram,Vilankuruchi Road, Coimbatore",as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners and the said marriage has been registered in Marriage Certificate No.HMR/NEGAMAM/46/2021 at SRO, Negamam There is no child born out of the wedlock.

3. I submit that ever since the date of their marriage, there was no cordial relationship between them. We being family members tried our level best to solve their misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised them for an amicable Settlement to live peacefully but all their attempts are futile. Hence, they have decided to get a decree of divorce through Court of Law by mutual consent. Hence, the main petition is filed. I crave leave to refer the main petition as part and parcel of this affidavit.

4. I submit that they are also having bright future if they get divorce now. So also, they have a chance of better life in near future. Hence, they have filed the above main petition seeking divorce by mutual consent. At this juncture, since the 1st petitioner being my son is working at Dubai, he has executed a Power of Attorney dated 13.11.2023 duly attested by Consulate General of India favouring me to proceed with the above case on his behalf since he may not get leave often to come to India to attend this case.

5. I submit that I have already produced the original Power of Attorney before this Hon'ble Court in M.C.No.162/2023 and as such I herewith produce xerox copy of the same.

Therefore, it is prayed that this Hon'ble Court may be pleased to pass an order by permitting me to appear on behalf of 1st petitioner as a Power Agent to prove the above case and pass such other further reliefs.

Solemnly affirm and signed
before me at Coimbatore on **PETITIONER NO.1**

ADVOCATE, COIMBATORE

IN THE COURT OF THE HON'BLE FAMILY

COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika - Petitioner No.1/Petitioner No.1

Mrs.Sowbarnika - Petitioner No.2/Petitioner No.2

-Vs-

- Nil - - Respondent

PETITION FILED UNDER ORDER III RULE II OF CPC

I. PETITIONER NO.1/PETITIONER NO.1:

Mr.R.Shankara Narayana Kumar S/o.Rajendran, aged 35 years, residing at D.No.1/310, Sri Meenatchi Sundaresuwarar Nagar, Phase I, Near Honey Bunch School, Thoppampatti, Vellalapalayam (Post), Pollachi, Coimbatore (Dt.),-642120 rep by his Power Agent R.Mallika

The address for service of Petitioner No.1 is the same as above and under the care of their counsel Mr.S.Chandrasekaran MA. BL.DLL. Advocate, Coimbatore - 641018.

II. PETITIONER NO.2/PETITIONER NO.2:

Mrs.Sowbarnika D/o.Venkatesh, aged 28 years, residing at, D.No.33, 1st Street, Jayaprakash Nagar, Ganapathy, Coimbatore North, Coimbatore-641006.

The address for service of Petitioner No.2 is the same as above and under the care of their counsel Mr.R.Balakrishnan BA., BL., Advocate, Coimbatore - 641018.

III. RESPONDENT:

- NIL-

For the reasons stated in the accompanying affidavit, the petitioner prays that this Hon'ble Court may be pleased to pass an order by permitting the petitioner herein to appear on behalf of 1st petitioner as a Power Agent to prove the above case and pass such other further relief, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

ADVOCATE FOR PETITIONER

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.R.Shankara Narayana kumar
Rep. by his Power Agent
Mrs.R.Mallika
- Petitioner No.1/
Petitioner No.1

Mrs.Sowbarnika
- Petitioner No.2/
Petitioner No.2

-Vs-

- Nil -
- Respondent

PETITION FILED UNDER ORDER III RULE II OF CPC

Pre.on:

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337